

Amendment No. 2 to HB0842

Crawford
Signature of Sponsor

AMEND Senate Bill No. 843

House Bill No. 842*

by deleting all language after the enacting clause and substituting instead:

SECTION 1. Tennessee Code Annotated, Section 67-4-409(g), is amended by deleting the subsection and substituting instead:

(g) WETLAND ACQUISITION FUND.

(1) Three and one-fourth cents (3.25¢) of the tax levied by subsection (a) shall be credited to a special agency account in the state general fund known as the 1986 wetland acquisition fund; provided, that such funds are not obligated or expended to acquire any interest in real property through condemnation or the power of eminent domain. Except as provided in subdivisions (g)(2)-(4), expenditures from such fund must only be made to implement and effectuate the purposes of title 11, chapter 14, part 4. Funds deposited in such fund shall not revert at the end of any fiscal year, and all interest accruing on investments and deposits of the fund not otherwise expended shall be returned to and made a part of the fund.

(2) The fund may be expended to maintain and enhance state-owned property that is under the Tennessee wildlife resources agency's jurisdiction.

(3) The fund may be expended for law enforcement personnel salaries, benefits, and other expenses necessary to carry out their duties as prescribed in title 69, chapter 9, and title 70.

(4) The commissioner of finance and administration, with the written approval of the executive director of the Tennessee wildlife resources agency, is

authorized, subject to legislative appropriation, to transfer funds from the 1986 wetland acquisition fund to the Tennessee heritage conservation trust fund, created in title 11, chapter 7, part 1. For the purposes of § 11-7-103(h), "other available sources" also shall not include any funds transferred to the Tennessee heritage conservation trust fund from the 1986 wetland acquisition fund pursuant to this subdivision (g)(4).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.